

SENATE BILL 1861

By Johnson

AN ACT to amend Tennessee Code Annotated, Title 50,
Chapter 6, Part 2, relative to workers'
compensation.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 50-6-208(d), is amended by deleting the first sentence of the subsection and substituting:

The sums collected by the administrator as provided in this section must be deposited by the administrator in a special fund, which must be termed the "subsequent injury and vocational recovery fund", to be disbursed by the administrator only for the purposes stated in this section, for costs associated with legal counsel to defend the administrator in actions claiming compensation from the subsequent injury and vocational recovery fund pursuant to this section, for costs associated with providing vocational recovery assistance to eligible employees pursuant to subsection (i), and for costs associated with implementing and maintaining a computer system for the bureau of workers' compensation.

SECTION 2. Tennessee Code Annotated, Section 50-6-235(a)(1), is amended by deleting "petition" and substituting "file a motion with".

SECTION 3. Tennessee Code Annotated, Section 50-6-235(a)(2), is amended by deleting "respond to the petition in a timely fashion" and substituting "comply with the court's order".

SECTION 4. Tennessee Code Annotated, Section 50-6-239(c)(3), is amended by deleting "request for hearing" and substituting "petition for benefit determination".

SECTION 5. Tennessee Code Annotated, Section 50-6-242(a)(2)(A), is amended by deleting "an impairment rating of at least ten percent (10%) to the body as whole, that has been determined according to the AMA guides as defined by § 50-6-102, by the authorized treating physician" and substituting "impairment ratings totaling at least ten percent (10%) to the body as whole, that have been determined according to the AMA guides, by the authorized treating physicians".

SECTION 6. Tennessee Code Annotated, Section 50-6-242(a)(2)(B), is amended by deleting "physician has" and substituting "physicians have" and by further deleting "physician's certification" and substituting "physicians' certifications".

SECTION 7. This act takes effect July 1, 2026, the public welfare requiring it.